

STRATEGIES AND TACTICS

CRIMINAL LAW AND PROCEDURE

COVERAGE AND ASSUMPTIONS

You will have 25 scorable¹ Criminal Law and Procedure questions on the exam. The NCBE says that about half of the questions on the exam will come from category V in the Coverage Outline below (Constitutional Protection of Accused Persons), and the other half will come from the remaining categories (I, II, III, and IV, the “substantive criminal law” categories).

Notice that a full one-half of the questions cover category V, which can be called “Constitutional Criminal Procedure,” i.e., the **federal constitutional protections given to persons suspected or accused of crimes**. So you’ll be responsible for major aspects of Criminal Procedure like the Fourth Amendment rules governing searches and seizures, the Fifth Amendment rules governing interrogations and confessions, the Sixth Amendment right to counsel, as well as miscellaneous constitutional rights governing the conduct of criminal trials (e.g., burdens of proof and persuasion, the Double Jeopardy clause, and the like). You may not have covered these constitutional Criminal Procedure topics in the requisite detail in your basic law school Criminal Law course, so you may need to study these topics extra intensively for the MBE.

COVERAGE OUTLINE

The following outline of coverage for the Criminal Law and Procedure portion of the MBE was adopted by the Bar Examiners for all MBEs given on or after February 2019. This is the most up-to-date outline of coverage released by the Bar Examiners as we go to press (September 2022), and your substantive study of Criminal Law and Procedure should therefore be centered around it.

I. Homicide

- A. Intended killings
 - 1. Premeditation, deliberation
 - 2. Provocation
- B. Unintended killings
 - 1. Intent to injure
 - 2. Reckless and negligent killings
 - 3. Felony murder
 - 4. Misdemeanor manslaughter

II. Other crimes

- A. Theft and receiving stolen goods
- B. Robbery
- C. Burglary
- D. Assault and battery
- E. Rape; statutory rape
- F. Kidnapping
- G. Arson
- H. Possession offenses

¹ That is, you’ll get 25 questions *that count* in your score. In addition, you’ll get another 3 or 4 questions that won’t count, and that are used by the NCBE for validation purposes. You’ll have no way to know which ones count or not. Therefore, you’ll see, and need to try to answer, 28 or 29 Criminal Law and Procedure questions in total.

III. Inchoate crimes; parties

- A. Inchoate offenses
 - 1. Attempts
 - 2. Conspiracy
 - 3. Solicitation
- B. Parties to crime

IV. General principles

- A. Acts and omissions
- B. State of mind
 - 1. Required mental state
 - 2. Strict liability
 - 3. Mistake of fact or law
- C. Responsibility
 - 1. Mental disorder
 - 2. Intoxication
- D. Causation
- E. Justification and excuse
- F. Jurisdiction

V. Constitutional protection of accused persons

- A. Arrest, search and seizure
- B. Confessions and privilege against self-incrimination
- C. Lineups and other forms of identification
- D. Right to counsel
- E. Fair trial and guilty pleas
- F. Double jeopardy
- G. Cruel and unusual punishment
- H. Burdens of proof and persuasion
- I. Appeal and error

WHAT TO EXPECT

While students typically score somewhat higher on criminal law questions than on questions in other subject areas, there is a very broad range of subjects covered, and numerous types of questions are used. Here are a few of the major types of questions:

1. You're asked whether, under the facts given, the defendant should be found guilty;
2. You're asked for the prosecutor's (or the defendant's) best argument;
3. You're asked which of four precedents is the best one for the facts given;
4. You're asked the most serious crime for which the defendant could be convicted;
5. You're asked which of four fact patterns most closely fits a certain type of crime (e.g., felony murder).

STUDY STRATEGIES**1. Learn the differences between degrees and types of homicides.**

You must keep the different types of homicides clear in your mind. Keep in mind that the common law did **not** recognize degrees of murder; therefore, if an MBE question wants to discuss degrees of murder, it will supply an appropriate statute.

In studying homicide, begin with murder. At common law, murder is an unlawful killing (neither justifiable nor excusable) with malice aforethought. Remember, "malice" **doesn't mean intent**. The Bar Examiners use this as a common MBE trap. Although the malice element **can** be satisfied by an intent either to kill or to cause serious injury, or by felony murder, it can **also** be satisfied by a "depraved heart"—that is, the actor disregards an unreasonably high risk of harm to human life. Usually on the MBE, if the examiners want to indicate a depraved heart, they will give you facts from which a reasonable jury can infer that the

defendant beyond doubt **consciously disregarded** (i.e., wasn't just unaware of) the high risk of harm. In any event, keep in mind that it's possible to be convicted of murder **without** intending to kill!

If a defendant satisfies the test for intentional murder, always look to see if there's sufficient **provocation** by the victim to knock the conviction down to voluntary manslaughter. Keep in mind that provocation is both subjective and objective: The provocation must be enough to anger this defendant, **and** it should be of a type that would provoke a reasonable person to kill; furthermore, this defendant must not have cooled off when the killing takes place, **and** a reasonable person would not have cooled off in these circumstance (a "heat of passion" killing).

If a defendant is charged with a killing that doesn't satisfy the requirements for murder, check for involuntary manslaughter; there are two types: **criminal negligence** and **misdemeanor manslaughter**. Criminal negligence means that the defendant ignores a risk of harm to human life, and that risk is **less** than the risk represented by depraved heart murder. Misdemeanor manslaughter is the misdemeanor equivalent of felony murder. What's important to remember here? First, don't get hung up on the difference between the mental state needed for depraved heart murder and the "gross negligence" that suffices for criminal negligence involuntary manslaughter. On the MBE, the examiners will usually set up the facts so that it's pretty clear which side of the line the case falls on.

Here's a good illustration of the difference between the mind-sets for depraved heart murder and criminal-negligence manslaughter: Two men set out in separate cars. One drives through town and shoots a gun into the window of a house where it's obvious that a crowded party is being held. He doesn't intend to kill anyone, but he does kill one of the people at the party. The other man drives out to the country and fires a gun into the window of what seems to be an abandoned hunting cabin. He doesn't intend to kill anyone, but he hits and kills a homeless person who's taken refuge in the cabin. The man who drove through the city committed depraved heart murder, due to what the jury can infer was his conscious disregard of the high probability that firing into a crowded house would hurt or kill someone. The one who drove through the country is liable for at most criminal-negligence involuntary manslaughter; the egregiousness of his conduct is much less, and there's no indication that he consciously disregarded a high risk of death or serious bodily harm.

Here's a sample question adapted from the MBE concerning homicide:

In which of the following situations is the defendant most likely to be guilty of common-law murder?

- A. The defendant is angry because his neighbor's dog has been barking loudly all afternoon. The defendant fires his rifle into the neighbor's house, not intending to hit anyone. The bullet strikes and kills the neighbor inside the house.
- B. The defendant and his neighbor are arguing. The neighbor delivers a backhand slap to the defendant's face. Angered by the slap, the defendant whips out a pistol from his pocket and shoots and kills the victim.
- C. The defendant rides his motorcycle through a stop sign, hitting and killing a pedestrian.
- D. The defendant, unprovoked, punches his neighbor in the chest. The blow causes the neighbor to fall, hitting his head on the curb and dying of a subdural hematoma.

This question covers the spectrum of homicides. As outlined above, you should start with the definition of murder: an unlawful killing with malice aforethought. Keep in mind that malice doesn't mean intent, but can be satisfied by extreme negligence or depraved heart. Applying this definition, you should find that Choices (C) and (D) are eliminated. Driving through a stop sign, in the absence of other facts, would certainly be considered negligent, but not a conscious disregard of an extremely high risk of death or serious injury (which is what depraved heart murder requires), so it's highly unlikely to be considered murder. Choice (D), similarly, involves a non-intentional killing; punching someone in the chest would show intent to injure, but not to injure seriously enough for intentional murder. Furthermore, (D) would not involve disregard of obvious high risk sufficiently great to satisfy depraved heart murder.

Your choice is now between (A) and (B). As outlined above, the second thing you should do on a homicide question is to analyze whether there is provocation sufficient to make the killing voluntary manslaughter. Remember, the provocation must be serious enough to provoke a reasonable person to kill, not just serious enough to provoke this defendant. Applying this to (A) and (B), you'll see provocation in both; however, in (A), the provocation—a barking dog—would not be enough to cause a **reasonable** person to kill. (Plus, shooting into a house that may be occupied is just the sort of utter disregard of a grave danger that the "depraved heart" version of murder is designed to punish.) The provocation in (B)—being slapped during an argument—on the other hand, might be enough (although it's not a certainty). Thus, you wind up with one answer choice that clearly fits murder, one that doesn't fit very well, and two that definitely don't work, so the one that fits, Choice (A), must be the best response.

2. Know the basic definitions of crimes against people and property.

It may seem too good to be true, but many Criminal Law MBE questions require nothing more than a mechanical application in which you compare the elements of different crimes to the facts you're given. The most important crimes to know are larceny, robbery, and burglary. (The following are common law definitions—if an MBE question wants you to deal with differences found in modern rules, it will state them.) Larceny is a trespassory taking and carrying away of the personal property of another with the intent to steal it. Robbery is very similar; it's simply a larceny from a person that is accomplished by force or fear. Burglary is the breaking and entering of the dwelling house of another, at night, with the intent to commit a felony therein. Although you'll also need to know the elements of false pretenses, embezzlement, larceny by trick, and other larceny-related crimes against the person, larceny, robbery, and burglary are the main crimes to remember.

3. Appreciate “hidden” issues—causation and intent.

MBE questions rarely focus on **obvious** issues. That's why it's important to know elements of crimes **flawlessly**. Even if you do, though, it's easy to miss issues, as the following question illustrates:

An antique dealer who was a skilled calligrapher crafted a letter on very old paper. She included details that would lead knowledgeable readers to believe the letter had been written by Thomas Jefferson to a friend. The antique dealer, who had a facsimile of Jefferson's autograph, made the signature and other writing on the letter resemble Jefferson's. She knew that the letter would attract the attention of local collectors. When it did and she was contacted about selling it, she said that it had come into her hands from a foreign collector who wished anonymity, and that she could make no promises about its authenticity. As she had hoped, a collector paid her \$5,000 for the letter. Later the collector discovered the letter was not authentic, and handwriting analysis established that the antique dealer had written the letter.

In a jurisdiction that follows the common-law definition of forgery, the antique dealer has

- A. committed both forgery and false pretenses.
- B. committed forgery, because she created a false document with the intent to defraud, but has not committed false pretenses, since she made no representation as to the authenticity of the document.
- C. not committed forgery, because the document had no apparent legal significance, but has committed false pretenses, since she misrepresented the source of the document.
- D. not committed forgery, because the document had no apparent legal significance, and has not committed false pretenses, since she made no representation as to authenticity of the document.

The subtle issue here relates to the definition of forgery. Forgery can occur only with respect to a document that has **some apparent legal significance**—for instance, the document represents a right to payment (e.g., a negotiable instrument), or indicates that title to property has passed (a deed), or purports to show that a contractual obligation is owed (a signed contract), or the like. Where the document when viewed on its face—and whether fake or genuine—does *not* purport to have legal significance, it can't be a “forgery” even if it's “counterfeit.” Since even a genuine letter by Jefferson wouldn't have present legal significance, faking it can't be forgery. (But using the fake to exchange it for money would be false pretenses.) So because of the subtleties in the definition of forgery, (C) is the correct answer.

Another issue that can trip you up is **intent**. You need to remember how intent applies to the different crimes. For instance, note how intent affects conspiracy, accomplice liability, larceny, and robbery. In conspiracy, the conspirators must not only intend to agree, but must also intend the criminal goal of the conspiracy. For a defendant to be liable as an accomplice, he must intend that his principal carry out the criminal act. (Thus, if one offers help without that intent, he **cannot** be liable as an accomplice.) In larceny, the trespassory taking must be done with the **intent to steal**. If the actor intends only to **borrow** another's property, there's **no intent to steal** and thus no larceny; however, if he plans to steal when he takes the goods but changes his mind later and returns them, he's still liable—he took the goods with the requisite intent. Burglary is similar in that it requires breaking and entering another's dwelling house, at night, **with the intent to commit a felony therein**. If a defendant intends to go in and play Scrabble, there's no burglary. If he mistakes the house for his own, goes in, and removes jewelry, believing that's his own, there's no intent to commit a felony, and thus no burglary. Keep in mind that, where intent is concerned, **even an unreasonable belief** can be a defense **if it negates intent**. In real life, a defendant's unreasonable belief may make it far less likely a jury will believe him, but this doesn't change the legal rule that even an unreasonable belief can negate intent.

Intent is also important to remember when dealing with crimes that punish a defendant for doing one act while intending to perform another. The defendant is liable **even if** the second crime is not performed!

This applies, of course, to the inchoate crimes of conspiracy and attempt, but also to crimes like larceny and burglary. For instance, burglary requires breaking and entering another's dwelling house, at night, with the intent to commit a felony therein. Thus, once the criminal actor has broken and entered with the appropriate intent, the crime is complete. Even if he has a change of heart once he's inside, he's still liable! Larceny requires the intent to steal. Once a person takes another's property with the intent to steal, a change of heart won't exonerate him, because the crime was **complete** when the taking occurred!

4. For Criminal Procedure, study cases.

In many instances, Criminal Procedure MBE questions resemble actual Supreme Court cases very closely; thus, you should become as familiar as you can with the fact patterns of **actual cases**.

5. Distinguish types of warrantless searches.

Remember to keep the different types of warrantless searches distinct in your mind. They are: (1) search incident to arrest; (2) inventory searches; (3) exigent circumstances; (4) plain view doctrine; (5) automobile searches; (6) consent searches; (7) stop and frisk; and (8) regulatory inspections (actually, you do need a warrant for this last one, but you don't need conventional probable cause to get it). Questions involving warrantless searches show up **a lot** on the MBE, so study the scope of each type very carefully. Frequently, Criminal Procedure MBE questions will involve one kind of search, but some of the answer choices will try to confuse you by relying on a **different** type of search.

Also, remember that the Fourth Amendment applies only to searches and seizures done by the **police** or by people working under the direction of the police.

Lastly, remember *Arizona v. Gant* (2009), which changed the rules on when the **passenger compartment of a vehicle** can be searched incident to arrest of the driver: The basic rule that a warrantless search incident to arrest must be limited to areas within the arrestee's "immediate control" now applies to searches of vehicles after the arrest of the driver. So if the police make an arrest for a **traffic violation**, handcuff the driver and put him in the patrol car, and then find evidence of some other crime when they search the passenger compartment, that search is **not justified by the incident-to-arrest doctrine**.

6. Keep in mind when Miranda kicks in.

Custodial interrogations/confessions is one of the Bar Examiners' favorite Crim Pro topics, so be sure to have a really good understanding of this area.

Also, remember that *Miranda* warnings are required only when the suspect would reasonably believe that the police intend to conduct a **custodial** interrogation. "Custodial" means the suspect is **not free to leave**. Thus, if the police question someone under circumstances not indicating that he's not free to leave (e.g., a casual street encounter, where suspicion of a particular crime has not yet focused on the person)—no *Miranda* needed. If the suspect volunteers a confession—no *Miranda* needed. Note also that a custodial interrogation **can** take place away from the police station, but it **must** be administered by the police (or an agent of the police)—not by someone who's just a civilian.

EXAM TACTICS

1. Apply statutes.

Some criminal law questions on the MBE will contain statutes. If you come across one of these, apply the statute to the facts **verbatim**. In many cases, simply doing this will lead you to the correct response. Here's an example:

A witness at a civil trial was asked on cross-examination if she had ever been convicted of stealing money from her church's collection plate. The witness stated she had never been convicted of any crime. In fact, she had pleaded guilty to such a charge and had been placed on probation. The witness was charged with perjury. A statute in the jurisdiction defines perjury as "knowingly making a false statement while under oath."

At trial, the witness testified that her attorney in the church-theft case had told her that, because she had been placed on probation, she had not been convicted of a crime. The witness had served her probationary period satisfactorily and been discharged from probation. The alleged advice of the attorney was incorrect.

If the jury believes the witness, it should find her

- A. guilty, because her mistake was one of law.
- B. guilty, because reliance on the advice of an attorney is not a defense.
- C. not guilty, if the jury also finds that her reliance on the attorney's advice was reasonable.
- D. not guilty, because she lacked the necessary mental state.

Here, the statute states that perjury requires **knowingly** making a false statement while under oath. Regardless of whether the witness should or shouldn't have relied on her attorney's opinion, she **didn't knowingly make a false statement**. Because that's what the statute requires, the witness simply **cannot** be guilty; she lacks the necessary mental state. Choice (D) correctly identifies this. To answer this question, then, all you have to do is mechanically apply the statute.

Note also that, in questions based on statutes, the correct response must agree with the statute. If an answer refers to a common law rule that conflicts with the statute, it cannot be the best response, even if the common law rule strikes you as being more "correct." Here's an example:

After consuming multiple alcoholic beverages at a bar, the defendant got in his car to drive home. During the drive, he spotted another bar, and stopped there to have three more alcoholic drinks. He then continued the drive towards his home, during which he struck and killed a pedestrian. Relevant statutes define manslaughter as the "killing of a human being in a criminally reckless manner." Criminal recklessness is "consciously disregarding a substantial and unjustifiable risk resulting from the actor's conduct." Another statute provides that intoxication is not a defense to crime unless it negates an element of the offense.

Defendant was charged with manslaughter and pleads intoxication as a defense. The state's best argument to counter the intoxication issue in the manslaughter death of the pedestrian is that

- A. intoxication is not a defense because manslaughter is historically a general intent crime.
- B. intoxication is a defense only to a specific intent crime, and no specific intent is involved in the definition of the crime of manslaughter.
- C. conscious risk-taking refers to the defendant's entire course of conduct, including drinking with the knowledge that he might become intoxicated and seriously injure or kill someone while driving.
- D. whether the defendant was intoxicated or not is not the crucial issue here; the real issue is whether the manner in which the defendant was operating his car can be characterized under the facts as criminally reckless.

As you can see, Choices (A), (B), and (D) ignore the terms of intoxication statute given in the facts, and, as a result, cannot be correct. That leaves only one alternative — (C) — which is in fact the correct response.

2. Remember causation.

Causation is a tricky issue, because it will never "pop out" of the page at you. In some MBE questions, the causation issue is carefully masked but nonetheless central to finding the correct answer. Remember — causation is **always** required for criminal liability. If the defendant's conduct did not cause the victim's injury, there's no criminal liability.

3. Remember that forgiveness or condonation by the victim, or return of stolen property, doesn't negate criminal liability.

For example, the crime of larceny is complete once one has taken someone else's property with the intent to steal it, whether or not the actor later decides to return the property. Likewise, the crime of burglary is complete once one has broken and entered another's dwelling house at night with the intent to commit a felony therein, even if the person later reconsiders. The fact that the victim subsequently forgives the criminal actor **does not** erase the crime's commission, because crimes are considered wrongs against the **state**, not against the individual (this is the primary distinction between crimes and torts).

Unfortunately, questions involving issues like this are sneaky. Your gut reaction will probably be that the defendant **shouldn't be found guilty**, because he's either renounced his criminal purpose or settled with the victim. Beware! You have to analyze these problems coldly and apply the elements of crimes **mechanically**. Here's an example:

A bookkeeper for a business had the authority to use the business' petty cash account to pay small bills owed by the business. The bookkeeper took \$50 from the account and used it to pay his own phone bill. The next day, the bookkeeper had remorse, and repaid the \$50 into the petty cash drawer. Larceny, embezzlement, and false pretenses are separate crimes in the jurisdiction. The defendant could most appropriately be found guilty of

- A. Larceny
- B. Embezzlement
- C. False pretenses
- D. None of the above

Here, your gut reaction might well lead you to Choice (D), because you think that the defendant should not be found guilty — after all, he repaid the proceeds before the loss was discovered, and no harm to the business occurred. According to the law, though, once the defendant misappropriated property in his possession, he became liable for embezzlement, **regardless** of the fact that he later repaid the funds before being discovered. This makes (B) the best response. (Choices (A) and (C) identify the wrong crimes.) You can see from this example how important it is to analyze MBE problems coldly and mechanically.

4. How to handle questions that ask for a defendant's "best defense."

Seeing the words "best defense" may strike fear in your heart, because you think you'll have to do some fine line-drawing as to the quality of various defenses. Have no fear, because that's not what you'll need to do. Based on our review of many such "best defense" questions, you can rely on this: One of the answer choices will almost certainly lead to an acquittal of the defendant, and three of them **won't**. To figure out which is which, analyze the choices as follows:

A. Does this answer choice apply to the facts?

If the answer choice does not correctly characterize the facts — e.g., the choice states the defendant acted without the requisite intent when the facts show the opposite — it cannot be the best response, even if it's theoretically correct.

B. Is this answer choice a correct statement of the law?

This is where you have to dig into your memory bank. The answer choice must correctly reflect the law in order to be the best response.

C. Is the argument sufficient to acquit the defendant?

Apart from being faithful to the facts and citing the correct law, the answer choice must identify the **central issue** in the facts. It must also negate an element of the crime or provide a valid defense to it. Watch for intent, defenses, and causation, which frequently are hidden issues. Here's an example:

A wife promised to pay a man she knew was a burglar \$2000 if the burglar would go to the wife's house the following night and take a diamond wedding ring from the wife's dresser in her bedroom. The wife told the burglar that, although the ring was legally hers, her husband would object to her selling it. The wife pointed out her home to the burglar and drew a floor plan showing the location of the window to the bedroom. The wife promised to leave that window closed but unlocked.

The burglar, confused in the dark, went to the wrong house. He found what seemed to be the correct window unlocked, climbed in, found the ring where the wife had indicated, and took it to the location where the payoff was to take place. At that point police arrested the wife and the burglar.

If the wife were charged with burglary, her best defense would be that

- A. there was no breaking.
- B. she consented to the entry.
- C. no overt act was committed by her.
- D. there was no intent to commit a felony.

The key fact to note here is that the mental element of burglary is missing. Burglary is breaking and entering the dwelling house of another, at night, with the intent to commit a felony therein. Thus, either the wife or the burglar had to *intend* to commit a felony. Neither did, because they both believed that the burglar entered to retrieve a ring that *belonged* to the wife; if the burglar had gone to the right house, his acts would not have been felonious. (D) is, therefore, the best response. The remaining three choices illustrate the other two steps in your "best defense" analysis. (A) and (B) both represent misstatements of the facts, because there was a breaking (opening a window), and there was *no consent* to entry (because the wife was not authorized to consent to the entry of another person's house). Choice (C), although it does correctly state the facts, ignores the legal principle that even in a state requiring an overt act for conspiracy, a member of the conspiracy can be liable without an overt act of her own. That leaves (D), which comports with both the facts and the law and acquits the wife.

By the same token, questions that ask for the **prosecutor's** best argument involve the same kind of analysis, but from the other side. That is, one of the answer choices will result in the defendant's conviction, and the other three won't. You'd simply ask whether the answer choice applies to the facts, if it's legally correct, and if it addresses a central issue that will result in the defendant's conviction.

5. In Procedure questions involving a search, determine the purpose of the search first.

Categorizing the type of search first is crucial, because what's valid in one set of circumstances—e.g., a valid custodial arrest—will differ from what's valid in another—e.g., a stop and frisk. Here's an example:

A police officer stopped the defendant for running a red light. Noting that the defendant was nervous, the officer ordered him from the car and placed him under arrest for running the light. State law allowed the police officer to arrest the defendant and take him to the nearest police station for booking. The officer thoroughly searched the defendant's person and discovered a small soft cellophane package of what appeared to be cocaine in his jacket pocket.

The defendant was charged with possession of cocaine. At trial, the defendant moved to prevent introduction of the cocaine into evidence, on the ground that the search violated his federal constitutional rights. The motion will most probably be

- A. denied, because the search was incident to a valid custodial arrest.
- B. denied, because the police officer acted under both a reasonable suspicion of criminality and a legitimate concern for his own personal safety.
- C. granted, because there was no reasonable or proper basis upon which to justify conducting the search.
- D. granted if the police officer was not in fear and did not suspect that the defendant was transporting narcotics.

It may seem basic, but the important thing here is to identify that this is a search **incident to a valid custodial arrest**. If you do that, you should be able to eliminate both answers (B) and (D) immediately, because they deal with the standard for a “stop and frisk.” Because a search incident to a valid custodial arrest is justified, (C) is wrong. That leaves you with (A)—the correct response.

6. In Procedure questions, watch for the “hidden” issue of standing.

Keep in mind that a person can object to a search **only** if he has a legitimate expectation of privacy as to the place searched. This rule is likely to be an issue if something incriminating one person is seized from someone else's home, car, office, etc. Here's an example:

A defendant who was a legislator was indicted in federal court for taking \$10,000 in cash bribes over several years to vote for certain bills. During the investigation, the FBI demanded and received from the defendant's bank the records of the defendant's checking account for the preceding three years. The records showed deposits of cash corresponding to the alleged bribes. At trial, the defendant moves to prevent the bank records into evidence, claiming violation of his constitutional rights. His motion should be

- A. granted, because a search warrant should have been secured for seizure of the records.
- B. granted, because the records covered such an extensive period of time that their seizure unreasonably invaded the defendant's right of privacy.
- C. denied, because the potential destructibility of the records, coupled with the public interest in proper enforcement of the criminal laws, created an exigent situation justifying the seizure.
- D. denied, because the records were business records of the bank in which the defendant had no legitimate expectation of privacy.

Standing to object to a search is a threshold issue—if a person has no legitimate expectation of privacy as to the premises searched, he has no right to challenge the search. Here, once the checking account records are in the bank's hands, the defendant doesn't have a legitimate expectation of privacy concerning them. (Apart from every other consideration, everyone working at the bank has access to them.) Thus, Choice (D) is the best response.

7. How to handle questions that deal with testimony and include the statement “If the jury believes him. . . .”

If a question states that the jury believes a piece of testimony, treat that testimony as **fact**. Why is this something to watch out for? Two reasons. First, it will inevitably appear when the defendant is testifying on his own behalf and your gut reaction is that he's lying through his teeth. If the jury believes him, though, you have to ignore your own feelings and treat the testimony as fact. Second, the testimony will **probably** address the issue of state of mind, so watch for **intent** problems when you see such testimony. Here's an example of these principles:

A woman and her friend went into a consignment shop. The woman took a leather wallet displayed as being sale for \$200, and put it into her purse. The owner of the store saw what had happened and told the woman to put the wallet back or pay for it. The friend then shot and killed the store owner.

The woman claims that she had previously consigned the wallet to the store to be sold for her account, and was merely exercising her right to terminate the consignment when the wallet didn't sell promptly. She testifies that she asked her friend to come along in case the store owner made trouble but that she did not plan on using any force and did not know that her friend was armed.

If the woman is prosecuted for felony murder and the jury believes her claim, she should be found

- A. guilty, because her friend committed a homicide in the course of a felony.
- B. guilty, because taking her friend with her to the store created the risk of death that occurred during the commission of a felony.
- C. not guilty, because she did not know that her friend was armed and thus did not have the required mental state for felony murder.
- D. not guilty, because she believed she was the owner of the wallet and thus did not intend to steal.

Your first reaction to the woman's testimony was probably, "Oh, sure, and I'm the tooth fairy"—after all, if her story was true, she could have just asked the store owner to end the consignment. If you read the facts carefully, though, you should have noticed that you are told to assume that the **jury believed her claim**. That means that you have to accept, as a fact, that the woman went to the store intending to retrieve an item belonging to her. Why is that point important? It eliminates a necessary element, her intent to steal, and thus removes the possibility of a felony; without a felony or an attempted felony, there can't be felony murder. Choice (D) recognizes this, so it's not only the best answer but also shows how important testimony can be in MBE questions.

8. How to handle questions asking which answer choice represents the most likely case in which the defendant will be convicted.

This type of question requires you to mechanically apply the law. If you do, you'll find that, in three of the answers, at least one element of the crime in question is missing, or that there's a valid defense, or that causation is lacking. Only one answer will satisfy all the requirements of the crime. Here's an example:

In which of the following situations is the defendant most likely to be guilty of larceny?

- A. The defendant took the victim's laptop computer, with the intention of returning it the next day. However, he spilled soda all over it and damaged it beyond repair.
- B. The defendant went into a home and took \$100 in the belief that the homeowner owed him this money in payment for a bet they had made.
- C. Mistakenly believing that larceny does not include the taking of a pet if the taker believes the owner is not a good dog-parent, the defendant took his neighbor's dog and sold it to a man he thought would be a nicer owner.
- D. Mistaking a victim's fur coat for her own at a restaurant coat-check, the defendant took the coat home with her.

Remember, in analyzing this problem, you'll find three answer choices that result in the defendant being acquitted and one that results in his being convicted. If you mechanically apply the elements of larceny to each choice, you'll find only one that fits the crime. Larceny requires a trespassory taking and carrying away of another's personal property, with the intent to steal it. In Choice (A), the defendant has no intent to steal, because he intends to return the laptop the next day. That choice is out. In Choice (B), the defendant has no intent to steal, because he intends the \$100 to pay for damage to his own car. That choice is out. In Choice (D), the defendant's mistake—however unreasonable—would provide a defense, because it negates his intent to steal. That choice is out. You're left with Choice (C). The defendant's mistake is "ignorance of the law" (a mistaken belief that particular conduct is not defined as a crime), which, as a general principle, is not a valid defense. Otherwise, Choice (C) satisfies the elements of larceny, so it's the best response.